

NON-DISCLOSURE AGREEMENT

RECITALS

This Non-Disclosure Agreement ('Agreement') is entered into as of May 1, 2024, by and between the parties identified below (each a 'Party' and collectively the 'Parties') for the purpose of exploring a potential business relationship.

1. DEFINITION OF CONFIDENTIAL INFORMATION

Confidential Information means all non-public, proprietary, or confidential information disclosed by one Party (the 'Disclosing Party') to the other Party (the 'Receiving Party'), whether orally, in writing, electronically, or by any other means, including but not limited to: trade secrets, business plans, financial information, customer lists, technical data, know-how, and any other information designated as confidential.

2. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to: (a) maintain the confidentiality of all Confidential Information using at least the same degree of care as it uses to protect its own confidential information, but no less than reasonable care; (b) limit access to Confidential Information to those employees or contractors with a legitimate need to know; (c) not use Confidential Information for any purpose other than evaluating the potential business relationship.

3. TERM AND DURATION

The obligations under this Agreement shall remain in effect during the term of any subsequent agreement between the Parties and shall survive termination for a period of three (3) years. The Parties mutually agreed to extend the standard 2-year confidentiality period given the sensitivity of the information being shared.

4. EXCLUSIONS

Confidential Information does not include information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was already known to the Receiving Party at time of disclosure; (c) is independently developed without use of Confidential Information; (d) must be disclosed under applicable law or court order, provided the Disclosing Party receives prompt written notice and an opportunity to seek a protective order.

5. RETURN OR DESTRUCTION

Upon written request by the Disclosing Party or termination of this Agreement, the Receiving Party shall promptly return or certifiably destroy all Confidential Information and any copies thereof, and shall certify such destruction in writing within five (5) business days.

6. REMEDIES

The Parties acknowledge that any breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive or other equitable relief in addition to all other remedies available at law or equity.